

26STCV15410 26STCV15410

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-09-16

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Case Number: 26STCV15410 Hearing Date: September 16, 2026 Dept: 509

Wound Care Solutions Management Company, Inc., et al. v. Raymond Manuel Aguirre, et al.

(1) MOTION TO SET ASIDE DEFAULT

(2) MOTION TO SET ASIDE DEFAULT

(3) MOTION TO SET ASIDE DEFAULT

(4) MOTION TO SET ASIDE DEFAULT

MOVING PARTY: (1) Defendant Raymond Manuel Aguirre

(2) Defendant Christina Abad-Aguirre

(3) Defendant Rovih Bryan Herrera

(4) Defendant Harbor Wound Care P.C

RESPONDING PARTY(S): (1)-(4) Plaintiffs Wound Care Solutions Management Company, Inc. and Empire Wound Care Corp.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiffs Wound Care Solutions Management Company, Inc. and Empire Wound Care Corp. (Plaintiffs) alleges that defendants Raymond Manuel Aguirre; Christina Abad-Aguirre; Rovih Bryan Herrera; and Harbor Wound Care P.C (Defendants) formed a competing business, in direct violation of the duties of loyalty, honesty and good faith owed to Plaintiffs. Plaintiffs allege eleven causes of action against Defendants.

On July 13, 2026, pursuant to Plaintiffs' request, each defendants' default was entered.

Now, each defendant moves to set aside the default. Plaintiff opposed each motion.

As the motions are materially identical, the Court considers all Defendants' motions together.

TENTATIVE RULING

Each Defendant's Motion to Set Aside Default is GRANTED. The Court orders the defaults entered on July 13, 2026, set aside and vacated. A stand-alone copy of the answer is to be filed no later than five days after the date of this order. All other requests for relief are DENIED, without prejudice.

Plaintiffs' request for sanctions is DENIED.

Moving parties to give notice, unless waived.

DISCUSSION

Motion to Set Aside Default

I. Analysis

A. Motion to Set Aside Default

Defendants now moves to set aside the default entered against them on July 13, 2026, under Code Civil Procedure section 473(b). In support of relief, Defendants' counsel demonstrates he was actively engaged in settlement negotiations with Plaintiffs when default was entered.

"Section 473, subdivision (b) provides for two distinct types of relief...Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of 'mistake, inadvertence, surprise, or neglect,' the court shall vacate any 'resulting default judgment or dismissal entered.'" (Leader v. Health Indus. of Am., Inc. (2001) 89 Cal. App. 4th 603, 615–16.) Here, Defendants do not request mandatory relief.

Instead, under the discretionary provisions of section 473(b), the court "may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Pro. § 473, subd. (b).) To obtain relief under this provision, the application for relief must be made "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding." (Ibid.)

This Court is mindful of the policy favoring relief from default where there is no prejudice to the opposing party. (See Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC, (2015) 61 Cal. 4th 830, 839 ["The general underlying purpose of section 473(b) is to promote the determination of actions on their merits"]; see also Austin v. Los Angeles Unified Sch. Dist. (2016) 244 Cal. App. 4th 918, 929 ["[b]ecause the law favors disposing of cases on their merits, 'any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations].'"].) As an initial matter, Defendants' counsel's declaration is sufficient to demonstrate excusable neglect under a totality of the circumstances. While Plaintiffs allege "Defendant's showing is manifestly inadequate under these principles," the Court disagrees. Defense counsel has a sufficient showing of excusable neglect. Further, the Court is not persuaded by Plaintiffs allegation they would suffer

any prejudice should these defaults be set aside. As will be discussed below, Plaintiffs knew responsive pleadings were forthcoming yet chose to delay proceedings by requesting the default to be entered.

Finally, as an observation, even if these instant motions were to be denied, Plaintiffs would likely need to file an amended complaint. If Plaintiffs seeks monetary damages, which it appears they are, Plaintiffs failed to demand a specified monetary amount in the complaint. (See Code Civ. Pro. §580; *Dhawan v. Biring* (2015) 241 Cal.App.4th 963.) As a result, it appears opposing this motion is merely academic as Defendants would likely respond to any amended complaint.

Accordingly, Defendants' Motion to Set Aside Default is GRANTED. The court orders the defaults entered on July 13, 2026, set aside and vacated. A stand-alone copy of the answer is to be filed no later than five days after the date of this order.

B. Other Requested Relief

"The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered. "A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action; he cannot thereafter, until such default is set aside in a proper proceeding, file pleadings or move for a new trial or demand notice of subsequent proceedings." (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385–386, internal citations omitted.)

Here, Defendants request various other forms of relief ranging from challenging the sufficiency of the allegations in the complaint to compelling arbitration. (Not. of Mot.) Ruling on such matters on a motion to vacate is improper. Defendants may file appropriate motions once entry of default is vacated.

The only request the Court could reasonably entertain is a motion to quash. However, Defendants request the Court quash "service of the Summons for lack of personal jurisdiction pursuant to Code of Civil Procedure § 418.10(a)(1), because none of the Defendants resides in, maintains a principal place of business in, or has constitutionally sufficient minimum contacts with Los Angeles County." (Not. of Mot.) This appears to be mislabeled because an individual is subject to general jurisdiction in the state of their domicile. (*Goodyear Dunlop Tires Operations, S.A. v. Brown* (2011) 564 U.S. 915, 924) Whether Defendants reside in Los Angeles County is irrelevant to personal jurisdiction.

Further, "[a] general appearance is one in which the defendant participates in the action in a manner which recognizes the court's jurisdiction. [Citation.] If the defendant raises an issue for resolution or seeks relief available only if the court has jurisdiction, then the appearance is a general one. [Citation.]" (*Factor Health Management v. Superior Court* (2005) 132 Cal.App.4th 246, 250.) By requesting this Court to send the matter to arbitration, a relief only available if the Court has jurisdiction, the Defendants have made a general appearance in filing this motion. Any challenge to personal jurisdiction has been waived.

Accordingly, all additional requested relief is DENIED, without prejudice. Defendants may bring noticed motions should they choose.

C. Sanctions

In opposition, Plaintiffs "respectfully request an award of their reasonable attorneys' fees and costs. (Opp. at p. 14:14-15.)

Plaintiffs move for sanctions under Code of Civil Procedure section 473(b) which states that "the court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties." As stated above, defense counsel did not move for mandatory relief. Therefore, the award of legal fees and costs are not mandatory in this particular case. Instead, Code of Civil Procedure section 473(c)(1)(a) allows

the court discretion to impose a penalty of up to \$1,000 whenever “the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section.” (Code Civ. Proc., § 415.20, subd. (c)(1)(a).) The Court, in its discretion, declines to do so.

Indeed, to be perfectly blunt, Plaintiff’s attorney, Mr. Ian A. Wright (SBN 271957) should not have requested entry of default and may have violated his ethical duty in doing so.

The evidence before this Court demonstrates that Mr. Wright and defense counsel, Mr. Grant were actively discussing mediation, settlement, and other procedural issues during the period these defaults were entered. (Grant Decl., Exs. 2-3.) On July 13, 2026, at 2:05pm, Mr. Wright sent an email to Mr. Grant stating in part: “Although I did agree to 15-day extensions on the responsive pleading deadline, I can’t hold off on filing a request for entry of default.” (Grant Decl., Ex. 3.) Just nine minutes later, on July 13, 2026, at 2:14pm, Mr. Grant sent an email to Mr. Wright stating in part: “Sorry. I picked up COV’D during my vacation and have been out. I will be filing a response for all Parties by the end of the week.” (Grant Decl., Ex. 3.)

Just forty minutes later, at 2:54pm on July 13, 2026, Mr. Wright filed request for default. (7/13/26 Request for Default.) This Court does not deny that Plaintiffs may have had the statutory right to enter a default on June 13th, when Mr. Wright did so. Be that as it may, one could reasonably assert that this filing is explicitly not to be condoned. (See *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 135, [“The State Bar Civility Guidelines deplore the conduct of an attorney who races opposing counsel to the courthouse to enter a default before a responsive pleading can be filed.”])

Indeed, “it is now well-acknowledged that an attorney has an ethical obligation to warn opposing counsel that the attorney is about to take an adversary’s default.” (*Lasalle v. Vogel*, supra, 36 Cal.App.5th at p. 135.) “In that regard we heartily endorse the related admonition found in The Rutter Group practice guide, and we note the authors’ emphasis on reasonable time: “Practice Pointer: If you’re representing plaintiff, and have had any contact with a lawyer representing defendant, don’t even attempt to get a default entered without first giving such lawyer written notice of your intent to request entry of default, and a reasonable time within which defendant’s pleading must be filed to prevent your doing so.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2008) § 5:73, p. 5-19 (rev. #1, 2008) as quoted in *Fasuyi*, supra, 167 Cal.App.4th at p. 702, 84 Cal.Rptr.3d 351.)” (*Ibid.*)

Instead, Mr. Wright sought the entry of default less than fifty minutes from notice of intent to file a default despite being informed that Mr. Grant intended to file a responsive pleading “by the end of the week.” (See Grant Decl., Ex. 3.) It appears Mr. Wright rushed to file his request for default in time to beat Mr. Wright’s responsive pleading. This action cannot be condoned.

While “Counsel’s breach of ethics is subject to reproof [it] does not in itself compel reversal of the order denying [the] motion to set aside the default and default judgment.” (*Shapell Social Rental Properties, LLC v. Chico’s FAS, Inc.* (2022) 85 Cal.App.5th 198, 216.) Instead, the Court addresses such concerns as it is required to consider taking “appropriate corrective action” regarding the breach of ethical and statutory duties. (See *Id.* at p. 216, fn. 3.) At this time, the Court declines to take any further such action, other than this admonishment. As such, Mr. Wright should consider himself fortunate.

Accordingly, Plaintiffs’ request for sanctions is DENIED.

IT IS SO ORDERED.

Dated: September 16, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.